

SENATE No. 806

The Commonwealth of Massachusetts

PRESENTED BY:

Patrick M. O'Connor

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act increasing access to acute hospital at home services.

PETITION OF:

NAME:

Patrick M. O'Connor

DISTRICT/ADDRESS:

First Plymouth and Norfolk

SENATE No. 806

By Mr. O'Connor, a petition (accompanied by bill, Senate, No. 806) of Patrick M. O'Connor for legislation to increase access to acute hospital at home services by mandating coverage by commercial insurance plans. Financial Services.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act increasing access to acute hospital at home services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 32A of the General Laws, as appearing in the 2022 official edition,
2 is hereby amended by inserting at the end thereof the following:

3 Section XX. The commission shall provide to any active or retired employee of the
4 commonwealth who is insured under the group insurance commission coverage and
5 reimbursement on par with in-person services for the cost of hospital at home services provided
6 by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute
7 Hospital Care at Home Program.

8 SECTION 2. Chapter 175 of the General Laws, as appearing in the 2022 official edition,
9 is hereby amended by inserting at the end thereof the following:

10 Section XX. An individual policy of accident and sickness insurance issued under section
11 108 that provides hospital expense and surgical expense insurance and any group blanket or
12 general policy of accident and sickness insurance issued under section 110 that provides hospital

expense and surgical expense insurance, which is issued or renewed within or without the commonwealth, shall provide coverage and reimbursement on par with in-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 3. Chapter 176A of the General Laws, as appearing in the 2022 official edition, is hereby amended by inserting at the end thereof the following:

Section XX. A contract between a subscriber and the corporation under an individual or group hospital service plan which provides hospital expense and surgical expense insurance, except contracts providing supplemental coverage to Medicare or other governmental programs, delivered, issued or renewed by agreement between the insurer and the policyholder, within or without the commonwealth, shall provide coverage and reimbursement on par with in-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 4. Chapter 176B of the General Laws, as appearing in the 2022 official edition, is hereby amended by inserting at the end thereof the following:

Section XX. Any subscription certificate under an individual or group medical service agreement, except certificates which provide supplemental coverage to medicare or other governmental programs, which is delivered, issued for delivery or renewed in the commonwealth, shall provide coverage and reimbursement on par with in-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 5. Chapter 176G of the General Laws, as appearing in the 2022 official edition, is hereby amended by inserting at the end thereof the following:

Section XX. Individual and group health maintenance contracts shall provide coverage and reimbursement on par with on-person services for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.

SECTION 6. Chapter 176I of the General Laws, as appearing in the 2022 official edition, is hereby amended by inserting at the end thereof the following:

Section XX. An organization entering into a preferred provider contract shall provide coverage and reimbursement for the cost of hospital at home services provided by an acute care hospital participating in the Centers for Medicare and Medicaid Services Acute Hospital Care at Home Program.